

Even in a DRM-less world, it's doubtful that music sharing over the Internet will ever cease—not because of the natural tendency to gravitate towards “free” music, not even out of the desire to “stick it to the man,” but because of the sheer variety of music you have access to. Go down to your local music store and ask them for Cockney Rebel's last album. Do write in if the salespeople don't goggle at you like you have some strange speech impediment. The shelves of music stores are stocked only with the CDs that sell, as will be the virtual shelves of all the music stores you'll visit. So if you want to get your hands on a classic, or the music of an obscure flash-in-the-pan band, your only hope is the file-sharing network, regardless of the existence of DRM. There's your excuse for the year—you pirate, simply because nobody else is giving you what you want—even when you're ready to pay for it!

### Common Good

In the spirit of shunning DRM and the Digital Millennium Copyright Act (DMCA), independent bands are now choosing Creative Commons (CC) licensing system. CC allows for varying degrees of freedom with content—right from fully-exploitable public domain material to personal-use-only copyrighted material. However, unlike the record companies who assume the worst, CC uses a deeper protection system—faith. CC licenses make no restrictions on personal use, and they assume that you'll respect the terms of the license, rather than enforce it on you through clunky DRM schemes. New artists have realised that the best way to get noticed is to become a viral phenomenon on the Web, and for that, the music files need to flow freely.

And they do—the albums included in this month's DVD, for instance, are licensed under the CC-Attribution-ShareAlike or Attribution-NonCommercial-ShareAlike licences, meaning that you're free to do whatever you want with the work—remixing included—as long as you give credit to the original artist, don't try to make money off that work (only in the latter case) and share the work under a similar license. The social Web will then kick in, and stars will be born. These indie heroes don't need to work for no bread, either (the CC licenses are mostly applicable to free content)—once they've got the exposure, they can make money off commercial uses of their work: playing it on a radio station, live shows, remixing and redistribution rights, and so on. Every waiver of a license condition can come with its own monetary reward. Money will be made, and everyone will live happily ever after.

### Power To The People

EMI's decision to offer DRM-free music is testament to how powerful the public voice can be. In the beginning, we perceived no chance that any of the big corporations would forego the opportunity to squeeze more money out of people every time they tried to make a fifth or sixth copy of their music, or tried to burn it to



Defective by Design is just one of the many communities supporting and even instigating the popular uprising against DRM

**DRM is going to be around for a good bit longer. If anything, restrictions will only vanish up to a point where nobody's complaining any more**

a CD, or wanted to listen to it one time too many; but it happened. The people expressed a desire, screamed themselves hoarse, and were finally heard. DRM-free music opens up a whole new world for you—your fair use rights are left intact, and finally, if you ever get sick of that iPod, you can invest in a different brand and not worry about your music not working any more. Bliss.

If only.

### The Reluctant Crowd

Apple has been pressurising the remaining three record companies to go the way of EMI, but they don't seem to be relenting—not for Apple, and not for Amazon's upcoming DRM-free music store. It's quite apparent that even movie studios aren't too interested in letting their cash cow go that easy—what with Blu-ray and HD-DVD movies coming with DRM and copy-protection built into them. The Sony-Toshiba-IBM Cell processor, which you'll find in the PlayStation 3, also sports an architecture that will theoretically support uncrackable, hardware-level DRM. Free world indeed.

DRM is going to be around for a bit longer. If anything, restrictions will only vanish up to a point where nobody's complaining any more. Apple's FairPlay DRM, for instance, is quite... well... fair, when you think about it. You can copy your music to an infinite number of iPods, and authorise three PCs to play your iTunes movies and music. For the few who have hit these limits, even FairPlay is restrictive, but the majority isn't complaining. You don't see Apple planting rootkits on *their* customers' computers, now, do you? The only drawback is that you're stuck to your iTunes and iPod till you decide to break away from Apple and crack the DRM to play your music on your new media player. In many ways, this equilibrium seems acceptable—the record companies will finally shut up, and you won't be subjected to the million inconveniences that come with other DRM schemes.

Undesirable, yes. Get used to it. ☒